



Tribunals Ontario

Landlord and Tenant Board

Form N1

Notice of Rent Increase

Instructions

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November 30, 2015

SECTION**A****When to use this notice**

You can give this notice to the tenant if you are increasing the tenant's rent. There are exceptions where you must use a different notice, see *Section B* for more information.

SECTION**B****When to use a different notice**

Most landlords must use this form (**Form N1**) when increasing the rent. However, there are **three exceptions**:

- Use **Form N2** to increase the tenant's rent if the rental unit is exempt from the rules under the *Residential Tenancies Act, 2006* (the RTA) limiting the amount of the rent increase.
- Use **Form N3** (Notice to Increase the Rent and/or Charges for Care Services and Meals) if the rental unit is in a care home.
- Use **Form N10** if you and the tenant have agreed to increase the rent above the guideline because you:
 - have done or will do capital work, or
 - have provided or will provide a new or additional service.

SECTION**C****How to increase the rent and give this notice**

You can increase the rent if at least 12 months have passed since the date of the last rent increase or since the date the tenant moved into the rental unit. If the previous tenant assigned the rental unit to the current tenant within the 12 months before the increase date, you can increase the rent if at least 12 months have passed since the previous tenant's last rent increase.

You must give the tenant the Notice of Rent Increase at least **90 days** before the date you will increase the tenant's rent.

There are many ways that you can give this notice to your tenant. You can:

- hand it directly to the tenant or to an adult in the rental unit,
- leave it in the tenant's mailbox or where mail is ordinarily delivered,
- place it under the door of the rental unit or through a mail slot in the door,
- send it by fax to a fax machine where the tenant carries on business or to a fax machine in their home,
- send it by courier, or
- send it by mail.

You cannot give the tenant this notice by posting it on the door of the tenant's rental unit.

SECTION

D

How to complete this notice

Read these instructions before completing the notice and follow the instructions carefully. If you do not complete the form properly, your notice may not be valid and you may have to start over.

Under **To**, fill in the name of the tenant to whom you want to give the notice. If there is more than one tenant living in the rental unit, fill in the names of all of the tenants.

Under **From**, fill in your name and mailing address. If there is more than one landlord, fill in the names of all of the landlords.

Under **Address of the Rental Unit**, fill in the complete address of the rental unit, including the unit number (or apartment or suite number) and the postal code.

Your New Rent:

Fill in the date the rent will increase.

Fill in the total amount, in dollars and cents, the tenant will be required to pay on the date the rent will increase. Then, fill in how often the tenant will pay rent, for example monthly.

Explanation of the Rent Increase:

Fill in the amount, in dollars and cents, by which you are increasing the tenant's rent. Then, fill in whether the tenant is required to pay rent by the month, by the week or by some other period (for example, quarterly). Fill in the percentage by which the rent will increase.

Does the rent increase need approval?

Each year the Ministry of Municipal Affairs and Housing sets a guideline for rent increases. For more information about the amount of the guideline and how it is calculated, visit the Landlord and Tenant Board's website at tribunalsontario.ca/lrb. Shade the appropriate box to show whether the rent increase is less than or equal to the guideline or whether it is more than the guideline under the RTA.

If you are increasing the rent by more than the guideline, shade the appropriate box to show whether the increase has already been approved by an order or whether you are waiting for the Board to issue an order approving the rent increase above the guideline.

Note: If you have applied to increase the rent above the guideline but the Board has not yet issued an order approving the rent increase, the tenant can choose to pay:

- the increased rent set out in the notice, or
- the current rent plus the guideline increase.

Signature:

If you are the landlord, shade the circle marked "Landlord". If you are the landlord's representative, shade the circle marked "Representative". Fill in your name and phone number. Then, sign the notice and fill in the date you sign the notice.

Representative's Information (if applicable):

If you are the landlord's representative, fill in your name and phone number. Then, fill in your name, company name (if applicable), and mailing address. Include your phone number and fax number, if you have one.

SECTION**E****Examples of rent increase calculations****Example 1 - Increasing the rent by the rent increase guideline:**

The landlord wants to increase the rent on September 1, 2015 by the rent increase guideline. The current rent is \$1000.00. The rent increase guideline for 2015 is 1.6%.

Here is how the landlord would calculate the rent increase:

$$\frac{\$1000.00 \times 1.6\%}{100} = \$16.00$$

$\$1000.00 + \$16.00 = \$1016.00$. The new rent is \$1016.00.

Example 2 - Increasing the rent by more than the guideline:

The landlord has made an application to increase the rent above the guideline. The current rent is \$800.00. If the landlord's application is approved by the Board, the landlord will be allowed to increase the rent by the guideline plus 3%. The landlord wants to increase the rent on August 1, 2015. The rent increase guideline for 2015 is 1.6%.

Here is how the landlord would calculate the rent increase: $1.6\% + 3\% = 4.6\%$

$$\frac{\$800.00 \times 4.6\%}{100} = \$36.80$$

$\$800.00 + \$36.80 = \$836.80$. The new rent is \$836.80.

What to do if you have any questions

You can visit the LTB website at: tribunalsontario.ca/ltb

You can call the LTB at 416-645-8080 from within the Toronto calling area, or toll-free at 1-888-332-3234 from outside Toronto, and speak to one of our Customer Service Officers.

Customer Service Officers are available Monday to Friday, except holidays, from 8:30 a.m. to 5:00 p.m. They can provide you with **information** about the *Residential Tenancies Act* and the LTB's processes; they cannot provide you with legal advice. You can also access our automated information menu at the same numbers listed above 24 hours a day, 7 days a week.